

Elder Conklin

Frank Harris

Project Gutenberg

Elder Conklin

Frank Harris

Project Gutenberg

The Project Gutenberg eBook of Elder Conklin

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Elder Conklin

Author: Frank Harris

Release date: October 12, 2007 [eBook #23012]

Most recently updated: February 24, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/23012

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK ELDER
CONKLIN ***

ELDER CONKLIN

By Frank Harris

As soon as the Elder left the supper-table his daughter and the new schoolmaster went out on the stoop or verandah which ran round the frame-house. The day had been warm, but the chilliness of the evening air betokened the near approach of the Indian summer. The house stood upon the crest of what had been a roll in the prairie, and as the two leant together on the railing of the stoop, they looked out over a small orchard of peach-trees to where, a couple of hundred yards away, at the foot of the bluff, Cottonwood Creek ran, fringed on either bank by the trees which had suggested its name. On the horizon to their right, away beyond the spears of yellow maize, the sun was sinking, a ball of orange fire against the rose mist of the sky. When the girl turned towards him, perhaps to avoid the level rays, Bancroft expressed the hope that she would go with him to the house-warming. A little stiffly Miss Conklin replied that she'd be pleased, but—

“What have I done, Miss Loo, to offend you?” the young man spoke deprecatingly.

“Nothin', I guess,” she answered, with assumed indifference.

“When I first came you were so kind and helped me in everything. Now for the last two or three days you seem cold and sarcastic, as if you were angry with me. I'd be sorry if that were so—very sorry.”

“Why did you ask Jessie Stevens to go with you to the house-warmin'?” was the girl's retort.

“I certainly didn't ask her,” he replied hotly. “You must know I didn't.”

“Then Seth lied!” exclaimed Miss Conklin. “But I guess he'll not try that again with me—Seth Stevens I mean. He wanted me to go with him to-night, and I didn't give him the mitten, as I should if I'd thought you were goin' to ask me.”

“What does 'giving the mitten' mean?” he questioned, with a puzzled air.

“Why, jest the plainest kind of refusal, I guess; but I only told him I was afraid I'd have to go with you, seein' you were a stranger. 'Afraid,” she repeated, as if the word stung her. “But he'll lose nothin' by waitin', nothin'. You hear me talk.” And her eyes flashed.

As she drew herself up in indignation, Bancroft thought he had never seen any one so lovely. “A perfect Hebe,” he said to himself, and started as if he had said the words aloud. The comparison was apt. Though Miss Loo Conklin was only seventeen, her figure had all the ripeness of womanhood, and her height—a couple of inches above the average—helped to make her look older than she was. Her face was more than pretty; it was, in fact, as beautiful as youth, good features, and healthy colouring could make it. A knotted mass of chestnut hair set off the shapely head: the large blue eyes were deepened by dark lashes. The underlip, however, was a little full, and the oval of the face through short curve of jaw a trifle too round. Her companion tried in vain to control the admiration of his gaze. Unrelated by what she felt to be merely her due, Miss Conklin was silent for a time. At length she observed:

“I guess I'll have to go and fix up.”

Just then the Elder appeared on the stoop. “Ef you're goin',” he said in the air, as his daughter swept past him into the house, “you'd better hitch Jack up to the light buggy.”

“Thank you,” said the schoolmaster; and for the sake of saying something, he added, “What a fine view.” The Elder paused but did not answer; he saw nothing remarkable in the landscape except the Indian corn and the fruit, and the words “fine view” conveyed no definite meaning to him; he went on towards the stables.

The taciturnity of the Elder annoyed Bancroft excessively. He had now passed a couple of weeks as a boarder with the Conklins, and the Elder's unconscious rudeness was only one of many peculiarities that had brought him to regard these Western folk as belonging almost to a distinct species. George Bancroft was an ordinary middle-class Bostonian.

He had gone through the University course with rather more than average success, and had the cant of unbounded intellectual sympathies. His self-esteem, however, was not based chiefly on his intelligence, but on the ease with which he reached a conventional standard of conduct. Not a little of his character showed itself in his appearance. In figure he was about the

middle height, and strongly though sparsely built. The head was well-proportioned; the face a lean oval; the complexion sallow; the hair and small moustache very dark; the brown eyes inexpressive and close-set, revealing a tendency to suspiciousness—Bancroft prided himself on his prudence. A certain smartness of dress and a conscious carriage discovered a vanity which, in an older man, would have been fatuous. A large or a sensitive nature would in youth, at least, have sought unconsciously to bring itself into sympathy with strange surroundings, but Bancroft looked upon those who differed from him in manners or conduct as inferior, and this presumption in regard to the Conklins was strengthened by his superiority in book-learning, the importance of which he had been trained to over-estimate.

During their drive Miss Conklin made her companion talk of Eastern life; she wanted to know what Chicago was like, and what people did in New York. Stirred by her eager curiosity, Bancroft sketched both cities in hasty outline, and proceeded to tell what he had read and heard of Paris, and Rome, and London. But evidently the girl was not interested by his praise of the art-life of European capitals or their historical associations; she cut short his disquisition:

“See here! When I first seed you an' knew you was raised in Boston, an' had lived in New York, I jest thought you no account for comin' to this jumpin'-off place. Why did you come to Kansas, anyway, and what did you reckon upon doin'? I guess you ain't goin' to teach school always.”

The young man flushed under the frankness of the girl's gaze and question, and what appeared like contempt in her opinion of him. Again he became painfully conscious that there was a wide social difference between Miss Conklin and himself. He had been accustomed to more reticence, and such direct questioning seemed impertinent. But he was so completely under the spell of her beauty, that he answered with scarcely visible hesitation:

“I came out here because I wanted to study law, and wasn't rich enough to do it in the East. This school was the first position offered to me. I had to take it, but I intend, after a term or two, to find a place in a lawyer's office in some town, and get admitted to practice. If I'd had fifteen hundred dollars I could have done that in Boston or New York, but I suppose it will all come right in time.”

“If I'd been you I'd have stayed in New York,” and then, clasping her hands on her knee, and looking intently before her, she added, “When I get to New York—an' that won't be long—I'll stay there, you bet! I guess New York's good enough for me. There's style there,” and she nodded her head decisively as she spoke.

Miss Loo and Bancroft were among the latest arrivals at the Morris'es. She stood beside him while he hitched Jack to a post of the fence amidst a crowd of other horses, and they entered the house together. In due form she presented the schoolmaster to Mr. and Mrs. Morris, and smilingly produced three linen tablecloths as her contribution to the warming. After accepting the present with profuse thanks and unmeasured praise of it and of the giver, Mrs. Morris conducted the newcomers across the passage into the best sitting-room, which the young folk had already appropriated, leaving the second-best room to their elders.

In the small square apartment were some twenty boys and girls, ranging between sixteen and twenty-two years of age. The boys stood about at one end of the room, while the girls sat at the other end chattering and enjoying themselves. Bancroft did not go among those of his own sex, none of whom he knew, and whom he set down as mere uncouth lads. He found it more amusing to stand near the girls and talk with them. By so doing he unconsciously offended the young men.

Presently a tall youth came towards them: “I guess we'd better play somethin'?” “Forfeits! Mr. Stevens,” was a girl's quick reply, and it was arranged to play forfeits in a queer educational fashion. First of all Mr. Stevens left the room, presumably to think. When he came in again he went over to Miss Conklin and asked her to spell “forgive.” After a moment's pause she spelt it correctly. He retired slowly, and on his return stopped again in front of Miss Conklin with the word “reconciliation.” She withstood the test triumphantly. Annoyed apparently with the pains she took, Mr. Stevens, on his next entrance, turned to a pretty, quiet girl named Miss Black, and gave her “stranger,” with a glance at Bancroft, which spread a laugh among the boys. Miss Black began with “strai,” and was not allowed to go on, for Mr. Stevens at once offered his arm, and led her into the passage.

“What takes place outside?” asked Bancroft confidentially of the girl sitting nearest to him, who happened to be Miss Jessie Stevens. She replied

with surprise:

“I guess they kiss each other!”

“Ah!—Now I understand,” he said to himself, and from that moment followed the proceedings with more interest. He soon found that successive pairs called each other out in turn, and he had begun to tire of the game, when Miss Jessie Stevens stopped before him and pertly gave the word “friendship.” Of course he spelt it wrongly, and accompanied her outside the door. As he kissed her cheek, she drew away her head quickly:

“I only called you out to give you a chance of kissin' Loo Conklin.”

He thought it wiser not to reply to this, and contented himself with thanking her as they entered the room. He paused before Miss Conklin, and gave her “bumpkin,” adding, by way of explanation, “a rude country fellow.” She spelt it cheerfully, without the “p.” When the mistake was made plain to her, which took some little time, she accepted his arm, and went with him into the passage. He kissed her more than once, murmuring, “At last, Miss Loo!” She replied seriously:

“See here! You're goin' to get into a fuss with Seth Stevens if you call me out often. And he's the strongest of them all. You ain't afraid? O.K. then. I guess we'll pay him out for lyin'.”

On returning to the room, Bancroft became conscious of a thinly veiled antagonism on the part of the young men. But he had hardly time to notice it, when Miss Loo came in and said to him demurely, “Loo.” He spelt “You.” Much laughter from the girls greeted the simple pleasantry.

So the game, punctuated by kisses, went on, until Miss Loo came in for the fourth time, and stopped again before Bancroft, whereupon Seth Stevens pushed through the crowd of young men, and said:

“Miss Loo Conklin! You know the rule is to change after three times.”

At once she moved in front of the stout youth, Richards, who had come forward to support his friend, and said “liar!” flashing at the same time an angry glance at Stevens. “Lire,” spelt Richards painfully, and the pair withdrew.

Bancroft went over to the men's corner; the critical moment had come; he measured his rival with a glance. Stevens was tall, fully six feet in height, and though rather lank, had the bow legs and round shoulders which often go with strength.

As he took up his new position, Stevens remarked to a companion, in a contemptuous drawl:

“Schoolmasters kin talk an' teach, but kin they fight?”

Bancroft took it upon himself to answer, “Sometimes.”

“Kin you?” asked Stevens sharply, turning to him.

“Well enough.”

“We kin try that to-morrow. I'll be in the lot behind Richards' mill at four o'clock.”

“I'll be there,” replied the schoolmaster, making his way again towards the group of girls.

Nothing further happened until the old folk came in, and the party broke up. Driving homewards with Miss Conklin, Bancroft began:

“How can I thank you enough for being so kind to me? You called me out often, almost as often as I called you.”

“I did that to rile Seth Stevens.”

“And not at all to please me?”

“Perhaps a little,” she said, and silence fell upon them.

His caution led him to restrain himself. He was disturbed by vague doubts, and felt the importance of a decisive word. Presently Miss Conklin spoke, in a lower voice than usual, but with an accent of coquettish triumph in the question:

“So you like me after all? Like me really?”

“Do you doubt it?” His accent was reproachful. “But why do you say 'after all'?”

“You never kissed me comin' back from church last Sunday, and I showed you the school and everythin'!”

“Might I have kissed you then? I was afraid of offending you.”

“Offendin' me? Well, I guess not! Every girl expects to be kissed when she goes out with a man.”

“Let's make up for it now, Loo. May I call you Loo?” While speaking he slipped his arm round her waist, and kissed her again and again.

“That's my name. But there! I guess you've made up enough already.” And Miss Conklin disengaged herself. On reaching the house, however, she

offered her lips before getting out of the buggy. When alone in his bedroom, Bancroft sat and thought. The events of the evening had been annoying. Miss Loo's conduct had displeased him; he did not like familiarity. He would not acknowledge to himself that he was jealous. The persistent way Stevens had tried to puzzle her had disgusted him—that was all. It was sufficiently plain that in the past she had encouraged Stevens. Her freedom and boldness grated upon his nerves. He condemned her with a sense of outraged delicacy. Girls ought not to make advances; she had no business to ask him whether he liked her; she should have waited for him to speak plainly. He only required what was right. Yet the consciousness that she loved him flattered his vanity and made him more tolerant; he resolved to follow her lead or to improve upon it. Why shouldn't he? She had said “every girl expects to be kissed.” And if she wanted to be kissed, it was the least he could do to humour her.

All the while, at the bottom of his heart there was bitterness. He would have given much to believe that an exquisite soul animated that lovely face. Perhaps she was better than she seemed. He tried to smother his distrust of her, till it was rendered more acute by another reflection—she had got him into the quarrel with Seth Stevens. He did not trouble much about it. He was confident enough of his strength and the advantages of his boyish training in the gymnasium to regard the trial with equanimity. Still, the girls he had known in the East would never have set two men to fight, never—it was not womanly. Good girls were by nature peacemakers. There must be something in Loo, he argued, almost—vulgar, and he shrank from the word. To lessen the sting of his disappointment, he pictured her to himself and strove to forget her faults.

On the following morning he went to his school very early. The girls were not as obtrusive as they had been. Miss Jessie Stevens did not bother him by coming up every five minutes to see what he thought of her dictation, as she had been wont to do. He was rather glad of this; it saved him importunate glances and words, and the propinquity of girlish forms, which had been more trying still. But what was the cause of the change? It was evident that the girls regarded him as belonging to Miss Conklin. He disliked the assumption; his caution took alarm; he would be more careful in future. The forenoon melted into afternoon quietly, though there were traces on Jake Conklin's bench of unusual agitation and excitement. To these signs the schoolmaster paid small heed at the moment. He was

absorbed in thinking of the evening before, and in trying to appraise each of Loo's words and looks. At last the time came for breaking up. When he went outside to get into the buggy—he had brought Jack with him—he noticed, without paying much attention to it, that Jake Conklin was not there to unhitch the strap and in various other ways to give proof of a desire to ride with him. He set off for Richards' mill, whither, needless to say, Jake and half-a-dozen other urchins had preceded him as fast as their legs could carry them.

As soon as he was by himself the schoolmaster recognized that the affair was known to his scholars, and the knowledge nettled him. His anger fastened upon Loo. It was all her fault; her determination to “pay Stevens out” had occasioned the quarrel.

Well, he would fight and win, and then have done with the girl whose lips had doubtless been given to Stevens as often and as readily as to himself. The thought put him in a rage, while the idea of meeting Stevens on an equality humiliated him—strife with such a boor was in itself a degradation. And Loo had brought it about. He could never forgive her. The whole affair was disgraceful, and her words, “Every girl expects to be kissed when she goes out with a man,” were vulgar and coarse! With which conclusion in his mind he turned to the right round the section-line, and saw the mill before him.

After the return from the house-warming, and the understanding, as she considered it, with Bancroft, Miss Loo gave herself up to her new-born happiness. As she lay in bed her first thought was of her lover: he was “splendid,” whereby she meant pleasant and attractive. She wondered remorsefully how she had taken him to be quite “homely-looking” when she first saw him. Why, he was altogether above any one she knew—not perhaps jest in looks, but in knowledge and in manners—he didn't stand in the corner of the room like the rest and stare till all the girls became uncomfortable. What did looks matter after all? Besides, he wasn't homely, he was handsome; so he was. His eyes were lovely—she had always liked dark eyes best—and his moustache was dark, too, and she liked that. To be sure it wasn't very long yet, or thick, but it would grow; and here she sighed with content. Most girls in her place would be sorry he wasn't taller, but she didn't care for very tall men; they sorter looked down on you. Anyway, he was strong—a pang of fear shot suddenly through her—he might be hurt by

that brute. Seth Stevens on the morrow. Oh, no. That was impossible. He was brave, she felt sure, very brave. Still she wished they weren't going to fight; it made her uneasy to think that she had provoked the conflict. But it couldn't be helped now; she couldn't interfere. Besides, men were always fightin' about somethin' or other.

Mr. Crew, the Minister, had said right off that he'd make his mark in the world; all the girls thought so too, and that was real good. She'd have hated a stupid, ordinary man. Fancy being married to Seth Stevens, and she shuddered; yet he was a sight better than any of the others; he had even seemed handsome to her once. Ugh! Then Bancroft's face came before her again, and remembering his kisses she flushed and grew hot from head to foot. They would be married soon—right off. As George hadn't the money, her father must give what he could and they'd go East. Her father wouldn't refuse, though he'd feel bad p'r'aps; he never refused her anythin'. If fifteen hundred dollars would be enough for George alone, three thousand would do for both of them. Once admitted as a lawyer, he would get a large practice: he was so clever and hard-working. She was real glad that she'd be the means of giving him the opportunity he wanted to win riches and position. But he must begin in New York. She would help him on, and she'd see New York and all the shops and elegant folk, and have silk dresses. They'd live in a hotel and get richer and richer, and she'd drive about with—here she grew hot again. The vision, however, was too entrancing to be shut out; she saw herself distinctly driving in an open carriage, with a negro nurse holding the baby all in laces in front, “jest too cute for anythin’,” and George beside her, and every one in Fifth Avenue starin'.

Sleep soon brought confusion into her picture of a happy future; but when she awoke, the glad confidence of the previous night had given place to self-reproach and fear. During the breakfast she scarcely spoke or lifted her eyes. Her silent preoccupation was misunderstood by Bancroft; he took it to mean that she didn't care what happened to him; she was selfish, he decided. All the morning she went about the house in a state of nervous restlessness, and at dinner-time her father noticed her unusual pallor and low spirits. To the Elder, the meal-times were generally a source of intense pleasure. He was never tired of feasting his eyes upon his daughter when he could do so without attracting attention, and he listened to her fluent obvious opinions on men and things with a fulness of pride and joy which was difficult to divine since his keenest feelings never stirred the

impassibility of his features. He had small power of expressing his thoughts, and even in youth he had felt it impossible to render in words any deep emotion. For more than forty years the fires of his nature had been “banked up.” Reticent and self-contained, he appeared to be hard and cold; yet his personality was singularly impressive. About five feet ten in height, he was lean and sinewy, with square shoulders and muscles of whipcord. His face recalled the Indian type; the same prominent slightly beaked nose, high cheek bones and large knot of jaw. But there the resemblance ended. The eyes were steel-blue; the upper lip long; the mouth firm; short, bristly, silver hair stood up all over his head, in defiant contrast to the tanned, unwrinkled skin. He was clean-shaven, and looked less than his age, which was fifty-eight.

All through the dinner he wondered anxiously what could so affect his daughter, and how he could find out without intruding himself upon her confidence. His great love for his child had developed in the Elder subtle delicacies of feeling which are as the fragrance of love's humility. In the afternoon Loo, dressed for walking, met him, and, of her own accord, began the conversation:

“Father, I want to talk to you.”

The Elder put down the water-bucket he had been carrying, and drew the shirt-sleeves over his nervous brown arms, whether out of unconscious modesty or simple sense of fitness it would be impossible to say. She went on hesitatingly, “I want to know—Do you think Mr. Bancroft's strong, stronger than—Seth Stevens?”

The Elder gave his whole thought to the problem. “P'r'aps,” he said, after a pause, in which he had vainly tried to discover how his daughter wished him to answer, “p'r'aps; he's older and more sot. There ain't much difference, though. In five or six years Seth'll be a heap stronger than the schoolmaster; but now,” he added quickly, reading his daughter's face, “he ain't man enough. He must fill out first.”

She looked up with bright satisfaction, and twining her hands round his arm began coaxingly:

“I'm goin' to ask you for somethin', father. You know you told me that on my birthday you'd give me most anythin' I wanted. Wall, I want somethin' this month, not next, as soon as I can get it—a pianner. I guess the settin'-

room would look smarter-like, an' I'd learn to play. All the girls do East," she added, pouting.

"Yes," the Elder agreed thoughtfully, doubting whether he should follow her lead eastwards, "I reckon that's so. I'll see about it right off, Loo. I oughter hev thought of it before. But now, right off," and as he spoke he laid his large hand with studied carelessness on her shoulder—he was afraid that an intentional caress might be inopportune.

"I'm cert'in Mr. Bancroft's sisters play, an' I—" she looked down nervously for a moment, and then, still blushing deeply, changed the attack: "He's smart, ain't he, father? He'd make a good lawyer, wouldn't he?"

"I reckon he would," replied the Elder.

"I'm so glad," the girl went on hurriedly, as if afraid to give herself time to think of what she was about to say, "for, father, he wants to study in an office East and he hain't got the money, and—oh, father!" she threw her arms round his neck and hid her face on his shoulder, "I want to go with him."

The Elder's heart seemed to stop beating, but he could not hold his loved one in his arms and at the same time realize his own pain. He stroked the bowed head gently, and after a pause:

"He could study with Lawyer Barkman in Wichita, couldn't he? and then you'd be to hum still. No. Wall! Thar!" and again came a pause of silence. "I reckon, anyhow, you knew I'd help you. Didn't you now?"

His daughter drew herself out of his embrace. Recalled thus to the matter in hand he asked: "Did he say how much money 'twould take?"

"Two or three thousand dollars"—and she scanned his face anxiously—"for studyin' and gettin' an office and everythin' in New York. Things are dearer there."

"Wall, I guess we kin about cover that with a squeeze. It'll be full all I kin manage to onc't—that and the pianner. I've no one to think of but you, Loo, only you. That's what I've bin workin' for, to give you a fair start, and I'm glad I kin jess about do it. I'd sorter take it better if he'd done the studyin' by himself before. No! wall, it don't make much difference p'r'aps. Anyway he works, and Mr. Crew thinks him enough eddicated even for the Ministry. He does, and that's a smart lot. I guess he'll get along all right." Delighted with the expression of intent happiness in his daughter's eyes, he continued:

“He's young yet, and couldn't be expected to hev done the studyin' and law and every-thin'. You kin be sartin that the old man'll do all he knows to help start you fair. All I kin. If you're sot upon it! That's enough fer me, I guess, ef you're rale sot on it, and you don't think 'twould be better like to wait a little. He could study with Barkman fer a year anyway without losin' time. No! wall, wall. I'm right thar when you want me. I'll go to work to do what I kin....

“P'r'aps we might sell off and go East, too. The farm's worth money now it's all settled up round hyar. The mother and me and Jake could get along, I reckon, East or West. I know more'n I did when I came out in '59.

“I'm glad you've told me. I think a heap more of him now. There must be a pile of good in any one you like, Loo. Anyhow he's lucky.” And he stroked her crumpled dress awkwardly, but with an infinite tenderness.

“I've got to go now, father,” she exclaimed, suddenly remembering the time. “But there!”—and again she threw her arms round his neck and kissed him. “You've made me very happy. I've got to go right off, and you've all the chores to do, so I mustn't keep you any longer.”

She hurried to the road along which Jake would have to come with the news of the fight. When she reached the top of the bluff whence the road fell rapidly to the creek, no one was in sight. She sat down and gave herself up to joyous anticipations.

“What would George say to her news? Where should they be married?”—a myriad questions agitated her. But a glance down the slope from time to time checked her pleasure. At last she saw her brother running towards her. He had taken off his boots and stockings; they were slung round his neck, and his bare feet pattered along in the thick, white dust of the prairie track. His haste made his sister's heart beat in gasps of fear. Down the hill she sped, and met him on the bridge.

“Wall?” she asked quietly, but the colour had left her cheeks, and Jake was not to be deceived so easily.

“Wall what?” he answered defiantly, trying to get breath. “I hain't said nothin.”

“Oh, you mean boy!” she cried indignantly. “I'll never help you again when father wants to whip you—never! Tell me this minute what happened. Is *he* hurt?”

“Is who hurt?” asked her brother, glorying in superiority of knowledge, and the power to tease with impunity.

“Tell me right off,” she said, taking him by the collar in her exasperation, “or—”

“I’ll tell you nothin’ till you leave go of me,” was the sullen reply. But then the overmastering impulse ran away with him, and he broke out:

“Oh, Loo! I jest seed everythin’. ‘Twar a high old fight! They wuz all there, Seth Stevens, Richards, Monkey Bill—all of ‘em, when schoolmaster rode up. He was still—looked like he wanted to hear a class recite. He hitched up Jack and come to ‘em, liftin’ his hat. Oh, ‘twas O.K., you bet! Then they took off their clo’s. Seth Stevens jerked hisn loose on the ground, but schoolmaster stood by himself, and folded hisn up like ma makes me fold mine at night. Then they comed together and Seth Stevens he jest drew off and tried to land him one, but schoolmaster sorter moved aside and took him on the nose, an’ Seth he sot down, with the blood runnin’ all over him. An’—an’—that’s all. Every time Seth Stevens hauled off to hit, schoolmaster was thar first. It war bully!—That’s all. An’ I seed everythin’. You kin bet your life on that! An’ then Richards and the rest come to him an’ said as how Seth Stevens was faintin’, an’ schoolmaster he ran to the crick an’ brought water and put over him. An’ then I runned to tell you—schoolmaster’s strong, I guess, stronger nor pappa. I seed him put on his vest, an’ Seth Stevens he was settin’ up, all blood and water on his face, streaky like; he did look bad. But, Loo—say, Loo! Why didn’t schoolmaster when he got him down the first time, jest stomp on his face with his heels?—he had his boots on—an’ that’s how Seth Stevens broke Tom Cooper’s jaw when *they* fit.”

The girl was white, and trembling from head to foot as the boy ended his narrative, and looked inquiringly into her face. She could not answer. Indeed, she had hardly heard the question. The thought of what might have happened to her lover appalled her, and terror and remorse held her heart as in a vice. But oh!—and the hot tears came into her eyes—she’d tell him when they met how sorry she was for it all, and how bad she had been, and how she hated herself. She had acted foolish, very; but she hadn’t meant it. She’d be more careful in future, much more careful. How brave he was and kind! How like him it was to get the water! Oh! if he’d only come.

All this while Jake looked at her curiously; at length he said, "Say, Loo, s'pose he'd had his eye plugged out."

"Go away—do!" she exclaimed angrily. "I believe you boys jest love fightin' like dogs."

Jake disappeared to tell and retell the tale to any one who cared to listen.

Half an hour later Loo, who had climbed the bluff to command the view, heard the sound of Jack's feet on the wooden bridge. A moment or two more and the buggy drew up beside her; the schoolmaster bent forward and spoke, without a trace of emotion in his voice:

"Won't you get in and let me drive you home, Miss Loo?" His victory had put him in a good humour, without, however, altering his critical estimate of the girl. The quiet, controlled tone of his voice chilled and pained her, but her emotions were too recent and too acute to be restrained.

"Oh, George!" she said, leaning forward against the buggy, and scanning his face intently. "How can you speak so? You ain't hurt, are you?"

"No!" he answered lightly. "You didn't expect I should be, did you?" The tone was cold, a little sarcastic even.

Again she felt hurt; she scarcely knew why; the sneer was too far-fetched for her to understand it.

"Go and put the horse up, and then come back. I'll wait right here for you."

He did as he was told, and in ten minutes was by her side again. After a long pause, she began, with quivering lips:

"George, I'm sorry—so sorry. 'Twas all my fault! But I didn't know"—and she choked down a sob—"I didn't think.

"I want you to tell me how your sisters act and—an' what they wear and do. I'll try to act like them. Then I'd be good, shouldn't I?

"They play the pianner, don't they?" He was forced to confess that one of them did.

"An' they talk like you?"

"Yes."

"An' they're good always? Oh, George, I'm jest too sorry for anythin', an' now—now I'm too glad!" and she burst into tears. He kissed and consoled her as in duty bound. He understood this mood as little as he had

understood her challenge to love. He was not in sympathy with her; she had no ideal of conduct, no notion of dignity. Some suspicion of this estrangement must have dawned upon the girl, or else she was irritated by his acquiescence in her various phases of self-humiliation. All at once she dashed the tears from her eyes, and winding herself out of his arms, exclaimed:

“See here, George Bancroft! I'll jest learn all they know—pianner and all. I ken, and I will. I'll begin right now. You'll see!” And her blue eyes flashed with the glitter of steel, while her chin was thrown up in defiant vanity and self-assertion.

He watched her with indifferent curiosity; the abrupt changes of mood repelled him. His depreciatory thoughts of her, his resolution not to be led away again by her beauty influencing him, he noticed the keen hardness of the look, and felt, perhaps out of a spirit of antagonism, that he disliked it.

After a few quieting phrases, which, though they sprang rather from the head than the heart, seemed to achieve their aim, he changed the subject, by pointing across the creek and asking:

“Whose corn is that?”

“Father's, I guess!”

“I thought that was the Indian territory?”

“It is!”

“Is one allowed to sow corn there and to fence off the ground? Don't the Indians object?”

“Tain't healthy for Indians about here,” she answered carelessly, “I hain't ever seen one. I guess it's allowed; anyhow, the corn's there an' father'll have it cut right soon.”

It seemed to Bancroft that they had not a thought in common. Wrong done by her own folk did not even interest her. At once he moved towards the house, and the girl followed him, feeling acutely disappointed and humiliated, which state of mind quickly became one of rebellious self-esteem. She guessed that other men thought big shucks of her anyway. And with this reflection she tried to comfort herself.

A week or ten days later, Bancroft came downstairs one morning early and found the ground covered with hoar-frost, though the sun had already warmed the air. Elder Conklin, in his shirt-sleeves, was cleaning his boots

by the wood pile. When he had finished with the brush, but not a moment sooner, he put it down near his boarder. His greeting, a mere nod, had not prepared the schoolmaster for the question:

“Kin you drive kyows?”

“I think so; I've done it as a boy.”

“Wall, to-day's Saturday. There ain't no school, and I've some cattle to drive to the scales in Eureka. They're in the brush yonder, ef you'd help. That is, supposin' you've nothin' to do.”

“No. I've nothing else to do, and shall be glad to help you if I can.”

Miss Loo pouted when she heard that her lover would be away the greater part of the day, but it pleased her to think that her father had asked him for his help, and she resigned herself, stipulating only that he should come right back from Eureka.

After breakfast the two started. Their way lay along the roll of ground which looked down upon the creek. They rode together in silence, until the Elder asked:

“You ain't a Member, air you?”

“No.”

“That's bad. I kinder misdoubted it las' Sunday; but I wasn't sartin. Ef your callin' and election ain't sure, I guess Mr. Crew oughter talk to you.”

These phrases were jerked out with long pauses separating them, and then the Elder was ominously silent.

In various ways Bancroft attempted to draw him into conversation—in vain. The Elder answered in monosyllables, or not at all. Presently he entered the woods on the left, and soon halted before the shoot-entrance to a roughly-built corral.

“The kyows is yonder,” he remarked; “ef you'll drive them hyar, I'll count them as they come in.”

The schoolmaster turned his horse's head in the direction pointed out. He rode for some minutes through the wood without seeing a single animal. Under ordinary circumstances this would have surprised him; but now he was absorbed in thinking of Conklin and his peculiarities, wondering at his habit of silence and its cause:

“Has he nothing to say? Or does he think a great deal without being able to find words to express his thoughts?”

A prolonged moan, a lowing of cattle in pain, came to his ears. He made directly for the sound, and soon saw the herd huddled together by the snake-fence which zigzagged along the bank of the creek. He went on till he came to the boundary fence which ran at right angles to the water, and then turning tried to drive the animals towards the corral. He met, however, with unexpected difficulties. He had brought a stock-whip with him, and used it with some skill, though without result. The bullocks and cows swerved from the lash, but before they had gone ten yards they wheeled and bolted back. At first this manouvre amused him. The Elder, he thought, has brought me to do what he couldn't do himself; I'll show him I can drive. But no! in spite of all his efforts, the cattle would not be driven. He grew warm, and set himself to the work. In a quarter of an hour his horse was in a lather, and his whip had flayed one or two of the bullocks, but there they stood again with necks outstretched towards the creek, lowing piteously. He could not understand it. Reluctantly he made up his mind to acquaint the Elder with the inexplicable fact. He had gone some two hundred yards when his tired horse stumbled. Holding him up, Bancroft saw he had tripped over a mound of white dust. A thought struck him. He threw himself off the horse, and tasted the stuff; he was right; it was salt! No wonder he could not drive the cattle; no wonder they lowed as if in pain—the ground had been salted.

He remounted and hastened to the corral. He found the Elder sitting on his horse by the shoot, the bars of which were down.

“I can't move those cattle!”

“You said you knew how to drive.”

“I do, but they are mad with thirst; no one can do anything with them. Besides, in this sun they might die on the road.”

“Hum.”

“Let them drink; they'll go on afterwards.”

“Hum.” And the Elder remained for some moments silent. Then he said, as if thinking aloud:

“It's eight miles to Eureka; they'll be thirsty again before they get to the town.”

Bancroft, too, had had his wits at work, and now answered the other's thought. "I guess so; if they're allowed just a mouthful or two they can be driven, and long before they reach Eureka they'll be as thirsty as ever."

Without a word in reply the Elder turned his horse and started off at a lope. In ten minutes the two men had taken down the snake fence for a distance of some fifty yards, and the cattle had rushed through the gap and were drinking greedily.

After they had had a deep draught or two, Bancroft urged his horse into the stream and began to drive them up the bank. They went easily enough now, and ahead of them rode the Elder, his long whitey-brown holland coat fluttering behind him. In half an hour Bancroft had got the herd into the corral. The Elder counted the three hundred and sixty-two beasts with painstaking carefulness as they filed by.

The prairie-track to Eureka led along the creek, and in places ran close to it without any intervening fence. In an hour under that hot October sun the cattle had again become thirsty, and it needed all Bancroft's energy and courage to keep them from dashing into the water. Once or twice indeed it was a toss-up whether or not they would rush over him.

He was nearly exhausted when some four hours after the start they came in sight of the little town. Here he let the herd into the creek. Glad of the rest, he sat on his panting horse and wiped the perspiration from his face. After the cattle had drunk their fill, he moved them quietly along the road, while the water dripped from their mouths and bodies. At the scales the Elder met the would-be purchaser, who as soon as he caught sight of the stock burst into a laugh.

"Say, Conklin," he cried out, "I guess you've given them cattle enough to drink, but I don't buy water for meat. No, sir; you bet, I don't."

"I didn't allow you would," replied the Elder gravely; "but the track was long and hot; so they drank in the crick."

"Wall," resumed the dealer, half disarmed by this confession, which served the Elder's purpose better than any denial could have done, "I guess you'll take off fifty pound a head for that water."

"I guess not," was the answer. "Twenty pound of water's reckoned to be about as much as a kyow kin drink."

The trading began and continued to Bancroft's annoyance for more than half an hour. At last it was settled that thirty pounds' weight should be allowed on each beast for the water it had drunk. When this conclusion had been arrived at, it took but a few minutes to weigh the animals and pay the price agreed upon.

The Elder now declared himself ready to go "to hum" and get somethin' to eat. In sullen silence Bancroft remounted, and side by side they rode slowly towards the farm. The schoolmaster's feelings may easily be imagined. He had been disgusted by the cunning and hypocrisy of the trick, and the complacent expression of the Elder's countenance irritated him intensely. As he passed place after place where the cattle had given him most trouble in the morning, anger took possession of him, and at length forced itself to speech.

"See here, Elder Conklin!" he began abruptly, "I suppose you call yourself a Christian. You look down on me because I'm not a Member. Yet, first of all, you salt cattle for days till they're half mad with thirst, then after torturing them by driving them for hours along this road side by side with water, you act lies with the man you've sold them to, and end up by cheating him. You know as well as I do that each of those steers had drunk sixty-five pounds' weight of water at least; so you got" (he couldn't use the word "stole" even in his anger, while the Elder was looking at him) "more than a dollar a head too much. That's the kind of Christianity you practise. I don't like such Christians, and I'll leave your house as soon as I can. I am ashamed that I didn't tell the dealer you were deceiving him. I feel as if I had been a party to the cheat."

While the young man was speaking the Elder looked at him intently. At certain parts of the accusation Conklin's face became rigid, but he said nothing. A few minutes later, having skirted the orchard, they dismounted at the stable-door.

After he had unsaddled his horse and thrown it some Indian corn, Bancroft hastened to the house; he wanted to be alone. On the stoop he met Loo and said to her hastily:

"I can't talk now, Loo; I'm tired out and half crazy. I must go to my room and rest. After supper I'll tell you everything. Please don't keep me now."

Supper that evening was a silent meal. The Elder did not speak once; the two young people were absorbed in their own reflections, and Mrs.

Conklin's efforts to make talk were effectual only when she turned to Jake. Mrs. Conklin, indeed, was seldom successful in anything she attempted. She was a woman of fifty, or thereabouts, and her face still showed traces of former good looks, but the light had long left her round, dark eyes, and the colour her cheeks, and with years her figure had grown painfully thin. She was one of the numerous class who delight in taking strangers into their confidence. Unappreciated, as a rule, by those who know them, they seek sympathy from polite indifference or curiosity. Before he had been a day in the house Bancroft had heard from Mrs. Conklin all about her early life. Her father had been a large farmer in Amherst County, Massachusetts; her childhood had been comfortable and happy: "We always kept one hired man right through the winter, and in summer often had eight and ten; and, though you mightn't think it now, I was the belle of all the parties." Dave (her husband) had come to work for her father, and she had taken a likin' to him, though he was such a "hard case." She told of Dave's gradual conversion and of the Revivalist Minister, who was an Abolitionist as well, and had proclaimed the duty of emigrating to Kansas to prevent it from becoming a slave state. Dave, it appeared, had taken up the idea zealously, and had persuaded her to go with him. Her story became pathetic in spite of her self-pity as she related the hardships of that settlement in the wilds, and described her loneliness, her shivering terror when her husband was away hauling logs for their first home, and news came that the slave-traders from Missouri had made another raid upon the scattered Abolitionist farmers. The woman had evidently been unfit for such rude transplanting. She dwelt upon the fact that her husband had never understood her feelings. If he had, she wouldn't have minded so much. Marriage was not what girls thought; she had not been happy since she left her father's house, and so forth. The lament was based on an unworthy and futile egoism, but her whining timidity appeared to Bancroft inexplicable. He did not see that just as a shrub pales and dies away under the branches of a great tree, so a weak nature is apt to be further enfeebled by association with a strong and self-contained character. In those early days of loneliness and danger the Elder's steadfastness and reticence had prevented him from affording to his wife the sympathy which might have enabled her to overcome her fears. "He never talked anythin' over with me," was the burden of her complaint. Solitude had killed every power in her save vanity, and the form her vanity took was peculiarly irritating to her husband, and in a lesser degree to her

daughter, for neither the Elder nor Loo would have founded self-esteem on adventitious advantages of upbringing. Accordingly, Mrs. Conklin was never more than an uncomfortable shadow in her own house, and this evening her repeated attempts to bring about a semblance of conversation only made the silence and preoccupation of the others painfully evident.

As soon as the supper things were cleared away, Loo signalled to Bancroft to accompany her to the stoop, where she asked him what had happened.

"I insulted the Elder," he said, "and I told him I should leave his house as soon as I could."

"You don't mean that!" she exclaimed. "You must take that back, George. I'll speak to pappa; he'll mind me."

"No," he replied firmly; "speaking won't do any good. I've made up my mind. It's impossible for me to stay here."

"Then you don't care for me. But that's not so. Say it's not so, George. Say you'll stay—and I'll come down this evening after the old folks have gone to bed, and sit with you. There!"

Of course the man yielded to a certain extent, the pleading face upturned to his was too seductive to be denied, but he would not promise more than that he would tell her what had taken place, and consult with her.

Shortly after nine o'clock, as usual, Mr. and Mrs. Conklin retired. Half an hour later Bancroft and Loo were seated together in the corner of the back stoop. They sat like lovers, his arm about her waist, while he told his story. She expressed relief; she had feared it would be much worse; he had only to say he didn't mean anythin', and she'd persuade her father to forget and forgive. But the schoolmaster would not consent to that. He had meant and did mean every word, and could take back nothing. And when she appealed to his affection, he could only repeat that he'd think it over. "You know I like you, Loo, but I can't do impossibilities. It's unfortunate, perhaps, but it's done and can't be undone." And then, annoyed at being pressed further, he thought they had better go in: it was very cold; she'd catch a chill if she stayed longer, and there was no sense in that. The girl, seeing that her pleading was of no avail, grew angry; his love was good enough to talk about, but it could not be worth much if he denied her so little a thing; it didn't matter, though, she'd get along somehow, she guessed—here they were startled by the sound of a door opening. Loo glided quickly round the

corner of the stoop, and entered the house. Bancroft following her heard the back door shut, and some one go down the steps. He could not help looking to see who was on foot at such an untimely hour, and to his surprise perceived the Elder in a night-shirt, walking with bare feet towards the stables through the long grass already stiff with frost. Before the white figure had disappeared Bancroft assured himself that Loo had gone up to bed the front way. Curiosity conquering his first impulse, which had been to follow her example, he went after the Elder, without, however, intending to play the spy. When he had passed through the stables and got to the top of the slope overlooking the creek, he caught sight of the Elder twenty yards away at the water's edge. In mute surprise he watched the old man tie his night-shirt up under his armpits, wade into the ice-cold water, kneel down, and begin what was evidently meant to be a prayer. His first words were conventional, but gradually his earnestness and excitement overcame his sense of the becoming, and he talked of what lay near his heart in disjointed phrases.

“That young man to-day jes' jumped on me! He told me I'd plagued them cattle half to death, and I'd acted lies and cheated Ramsdell out of three hundred dollars. 'Twas all true. I s'pose I did plague the cattle, though I've often been as thirsty as they were—after eatin' salt pork and workin' all day in the sun. I didn't think of hurtin' them when I salted the floor. But I did act to deceive Ramsdell, and I reckon I made nigh on three hundred dollars out of the deal. 'Twas wrong. But, O God!”—and unconsciously the old man's voice rose—“You know all my life. You know everythin'. You know I never lied or cheated any one fer myself. I've worked hard and honest fer more'n forty years, and always been poor. I never troubled about it, and I don't now, but fer Loo.

“She's so pretty and young. Jes' like a flower wants sunshine, she wants pleasure, and when she don't git it, she feels bad. She's so young and soft. Now she wants a pile of money and a pianner, and I couldn't git it fer her no other way. I had to cheat.

“O Lord, ef I could kneel down hyar and say I repented with godly repentance fer sin and determination never to sin agen, I'd do it, and ask you to pardon me for Jesus' sake, but I kain't repent—I jes' kain't! You see my heart, O God! and you know I'll go on cheatin' ef that'll get Loo what she wants. An' so I've come down hyar to say that Loo ain't with me in the

cheatin'; it's all my sin. I know you punish sin. The stiff-necked sinner ought to be punished. Wall; I'll take the punishment. Put it right on to me—that's justice. But, O Lord! leave Loo out; she don't know nothin' about it. That's why I've come down hyar into the water to show I'm willin' to bear what you send. Amen, O Lord God! In Jesus' name, Amen.”

And he rose quietly, came out of the creek, wiped his dripping limbs with his hand as well as he could, let down his night-shirt, and prepared to climb the bank. Needless to say, Bancroft had slipped through the stables and reached the house before the Elder could get within sight of him.

When alone in his room the schoolmaster grew a little ashamed of himself. There could be no doubt of the Elder's sincerity, and he had insulted him. The Elder had sacrificed his principles; had done violence to the habits of his life, and shame to his faith and practice—all in order that his daughter might have her “pianner.” The grotesque pronunciation of the word appeared pathetic to Bancroft now; it brought moisture into his eyes. What a fine old fellow Conklin was! Of course he wished to bear the whole burden of his sin and its punishment. It would be easy to go to him on the morrow and beg his pardon. Wrong done as the Elder did it, he felt, was more than right. What a Christian at heart! And what a man!

But the girl who asked for such a sacrifice—what was she? All the jealousy, all the humiliation he had suffered on her account, came back to him; she would have her father steal provided she got her piano. How vain she was and self-willed; without any fine moral feeling or proper principle! He would be worse than a fool to give his life to such a woman. If she could drive her father—and such a father—to theft, in what wrongdoing might she not involve her husband? He was warned in time; he would not be guilty of such irreparable folly. He would match her selfishness with prudence. Who could blame him? That was what the hard glitter in her eyes betokened—cold selfishness; and he had thought of her as Hebe—a Hebe who would give poisoned wine to those who loved her. He was well saved from that.

The old Greek word called her up before him, and the spell of her physical charm stole over his astonished senses like perfumed summer air. Sitting beside her that evening, his arm round her waist, he had felt the soft, full curves of her form, and thinking of it his pulses throbbed. How fair her face was! That appealing air made her irresistible; and even when she was

angry, how splendidly handsome! What a pity she should be hard and vulgar! He felt estranged from her, yet still cherished the bitterness of disappointment. She was detestably vain, common and selfish; he would be on his guard.

Next day at breakfast Mr. Morris came in. He was an ordinary young Western farmer, rough but kindly, ill-educated but sensible. When his appetite was satisfied he wanted to know whether they had heard the news.

“No,” Mrs. Conklin replied eagerly, “we’ve heard nothing unless p'r'aps the Elder in Eureka”—but her husband shook his head, and Morris went on:

“Folks say the Government in Washington has sent General Custer out with troops to pectect the Indian Territory. Away East they think the settlers have been stealing the Reserve, an' the soldiers are coming with surveyors to draw the line again.”

After a pause, “That seems right,” said the Elder; “thar' ain't nothin' agen that.”

“But you’ve ploughed and raised crops on the Indian land across the crik,” objected Morris; “we all hev. Air we to give it up?”

There was no answer.

“Anyway,” Morris continued, “Custer’s at Wichita now. He’ll be here in a day or two, an’ we’ve called a meetin’ in the school-house for this evenin’ an’ we hope you’ll be on hand. 'Tain’t likely we’re goin’ to stand by an’ see our crops destroyed. We must hold together, and all’ll come right.”

“That’s true,” said the Elder, thinking aloud, “and good. Ef we all held together there’d not be much wrong done.”

“Then I kin tell the boys,” resumed Morris, rising, “that you’ll be with us, Elder. All us young uns hold by you, an’ what you say, we’ll do, every time.”

“Wall,” replied the Elder slowly, “I don’t know. I kain’t see my way to goin’. I’ve always done fer myself by myself, and I mean to—right through; but the meetin’ seems a good idee. I’m not contradictin’ that. It seems strong. I don’t go much though on meetin’s; they hain’t ever helped me. But a meetin’ seems strong—for them that likes it.”

With this assurance Morris was fain to be satisfied and go his way.

Bancroft had listened to the colloquy with new feelings. Prepared to regard with admiration all that the Elder said or did, it was not difficult for him now to catch the deeper meaning of the uncouth words. He was drawn to the Elder by moral sympathy, and his early training tended to strengthen this attraction. It was right, he felt, that the Elder should take his own course, fearing nothing that man could do.

In the evening he met Loo. She supposed with a careless air that he was goin' to pack them leather trunks of his.

"No, I've reconsidered it," he answered. "I'm going to beg your father's pardon, and take back all I said to him."

"Oh! then you do care for me, George," cried the girl enthusiastically, "an' we ken be happy again. I've been real miserable since last night; I cried myself to sleep, so I did. Now I know you love me I'll do anythin' you wish, anythin'. I'll learn to play the pianner; you see if I don't."

"Perhaps," he replied harshly, the old anger growing bitter in him at the mention of the "pianner"—"perhaps it would be better if you gave up the idea of the piano; that *costs* too much," he added significantly, "far too much. If you'd read good books and try to live in the thought of the time, it would be better. Wisdom is to be won cheaply and by all, but success in an art depends upon innate qualities."

"I see," she exclaimed, flaming up, "you think I can't learn to play like your sister, and I'm very ignorant, and had better read and get to know all other people have said, and you call that wisdom. I don't. Memory ain't sense, I guess; and to talk like you ain't everythin'."

The attack pricked his vanity. He controlled himself, however, and took up the argument: "Memory is not sense, perhaps; but still one ought to know the best that has been said and done in the world. It is easier to climb the ladder when others have shown us the rungs. And surely to talk correctly is better than to talk incorrectly."

"It don't matter much, I reckon, so long as one gets your meanin', and as for the ladder, a monkey could do that."

The irrelevant retort puzzled him, and her tone increased his annoyance. But why, he asked himself, should he trouble to lift her to a higher level of thought? He relapsed into silence.

With wounded heart the girl waited; she was hurt, afraid he did not care for her, could not even guess how she had offended him; but, as he would not speak, her pride came to her aid, and she remarked:

“I'm asked out this evenin', so I'll have to get ready and go. Good night, George Bancroft.”

“Good night, Miss Loo,” he replied calmly, though the pain he suffered proved that jealousy may outlive love. “I think I shall go to this meeting at the school-house.”

They parted. Loo went upstairs to her room to cry over her misery and George's coldness; to wish she had been better taught, and had learned her lessons in school carefully, for then he might have been kinder. She wondered how she should get books to read. It was difficult. Besides, couldn't he see that she was quick and would learn every-thin' afterwards if he'd be good to her. Why did he act so? Why!

Bancroft went to the meeting, and found the house crowded. A young farmer from the next county was present, who told how a United States officer with twelve men and a surveyor had come and drawn the boundary line, torn up his fences, and trampled down the corn which he had planted in the Indian Reserve. The meeting at once adopted the following resolution:

“In view of the fact that the land cultivated by American citizens in or upon the Indian Reserve has never been used or cultivated by the Indians, who keep to the woods, and that it is God's will that land should bring forth fruit for the sustenance of man, we are resolved to stand upon our rights as citizens and to defend the same against all aggressors.”

Every one signed this document, copies of which were to be sent to General Custer, and also to the President, to the Senate, and to Congress. It was arranged further to write to their own representatives at Washington giving an account of the situation.

After this the meeting broke up, but not before all present had agreed to stand by any of their number who should resist the troops.

When Bancroft returned home Mr. and Mrs. Conklin were still up, and he related to them all that had taken place. The Elder rose and stretched himself without having made a remark. In a whisper Bancroft asked Mrs.

Conklin to let him have a word with her husband. As soon as they were alone, he began:

“Mr. Conklin, I insulted you yesterday. I am sorry for it. I hope you'll forgive me.”

“Yes,” replied the Elder meditatively, overlooking the proffered hand, “yes, that's Christian, I reckon. But the truth's the truth.” Turning abruptly to leave the room, he added: “The corn's ripe, waitin' to be cut; ef the United States troops don't eat it all up we'll have a good year.” There was a light in his steady eyes which startled the schoolmaster into all sorts of conjectures.

A day or two later, the Conklins and Bancroft were seated at dinner when a knock came at the door. “Come in!” said Mrs. Conklin, and a young officer appeared in the uniform of the United States cavalry. He paused on the threshold, lifted his cap, and apologized for his intrusion:

“Elder Conklin, I believe?” The Elder nodded his head, but continued eating. “My business isn't pleasant, I fear, but it needn't take long. I'm sent by General Custer to draw the boundary line between the State of Kansas and the Indian Reserve, to break down all fences erected by citizens of the United States in the Territory, and to destroy such crops as they may have planted there. I regret to say our surveyor tells me the boundary line here is Cottonwood Creek, and I must notify you that tomorrow about noon I shall be here to carry out my orders, and to destroy the crops and fences found on the further side of the creek.”

Before withdrawing he begged pardon again, this time for the short notice he was compelled to give—a concession apparently to Miss Conklin's appearance and encouraging smiles.

“Oh, pappa!” cried Loo, as he disappeared, “why didn't you ask him to have some dinner? He jest looked splendid, and that uniform's too lovely.”

The Elder made no answer. Neither the courteous menace of the lieutenant nor his daughter's reproach seemed to have had any effect upon him. He went on with his dinner.

Loo's outspoken admiration of the officer did not move Bancroft as she had anticipated. It simply confirmed his worst suspicions. His nature was neither deep nor passionate; he had always lived in the conventions which the girl constantly outraged, and they now exercised their influence. Moreover, he had self-possession enough to see that she meant to annoy

him. He was exceedingly anxious to know what the Elder intended to do, and what Loo might think or feel did not interest him greatly.

A few hours later a clue was given to him: Jake came and told him as a piece of news that "Pa's shot-gun ain't in his room." Bancroft could not rid himself of the thought that the fact was significant. But the evening passed away quietly; Loo busied herself with some work, and the Elder seemed content to watch her.

At breakfast next morning nothing of moment happened. Bancroft took occasion to say that he was coming home early to dinner. On his return from school, some three hours after, he saw a troop of horsemen riding up the valley a mile or so away. With quickened pulses he sprang up the steps and met the Elder in the doorway.

"There they come!" he said involuntarily, pointing to the little cloud of dust.

"Hum," grunted the Elder, and left the stoop, going towards the outhouses.

Bancroft turned into the parlour, where he found Mrs. Conklin. She seemed to be irritated, and not at all anxious, as he had expected:

"Did you see the Elder?"

"Yes," he replied. "He went to the barn. I thought of accompanying him, but was afraid he wouldn't like it."

"I guess he's worrying about that corn," Mrs. Conklin explained. "When he broke that land I told him 'twould bring trouble, but he never minds what any one says to him. He should listen to his wife, though, sometimes, shouldn't he? But bein' a man p'r'aps you'll take his part. Anyway, it has all happened as I knew it would. And what'll he do now? that's what I'd like to know. All that corn lost and the fences—he jest worked himself to death on those logs—all lost now. We shall be bare poor again. It's too bad. I've never had any money since I left home." And here Mrs. Conklin's face puckered itself up as if she were about to cry, but the impulse of vanity being stronger, she burst out angrily: "I think it's real wicked of the Elder. I told him so. If he'd ask that young man to let him cut the corn, I'm sure he wouldn't refuse. But he'll never take my advice, or even answer me. It's too aggravatin' when I know I'm right."

He looked at her in astonishment. She had evidently no inkling of what might occur, no vivid understanding of her husband's character. Preferring to leave her in ignorance, he said lightly, "I hope it'll be all right," and, in order to change the subject, added, "I've not seen Miss Loo, and Jake wasn't in school this morning."

"Oh, Mr. Bancroft, if anythin' has happened to Jake!" and Mrs. Conklin sank weakly into the nearest chair; "but thar ain't no swimmin' nor skatin' now. When he comes in I'll frighten him; I'll threaten to tell the Elder. He mustn't miss his schooling for he's real bright, ain't he?—Loo? Her father sent her to the Morrisises, about some-thin'—I don't know what."

When Bancroft came downstairs, taking with him a small revolver, his only weapon, he could not find the Elder either in the outbuildings or in the stable. Remembering, however, that the soldiers could only get to the threatened cornfield by crossing the bridge, which lay a few hundred yards higher up the creek, he made his way thither with all speed. When he reached the descent, he saw the Elder in the inevitable, long, whitey-brown holland coat, walking over the bridge. In a minute or two he had overtaken him. As the Elder did not speak, he began:

"I thought I'd come with you, Elder. I don't know that I'm much good, but I sympathize with you, and I'd like to help you if I could."

"Yes," replied the Elder, acknowledging thereby the proffered aid. "But I guess you kain't I guess not," he repeated by way of emphasis.

In silence the pair went on to the broad field of maize. At the corner of the fence, the Elder stopped and said, as if speaking to himself:

"It runs, I reckon, seventy-five bushel to the acre, and there are two hundred acres." After a lengthened pause he continued: "That makes nigh on three thousand dollars. I must hev spent two hundred dollars this year in hired labour on that ground, and the half ain't cut yet. Thar's a pile of money and work on that quarter-section."

A few minutes more passed in silence. Bancroft did not know what to say, for the calm seriousness of the Elder repelled sympathy. As he looked about him there showed on the rise across the creek a knot of United States cavalry, the young lieutenant riding in front with a civilian, probably the surveyor, by his side. Bancroft turned and found that the Elder had disappeared in the corn. He followed quickly, but as he swung himself on to

the fence the Elder came from behind a stook with a burnished shot-gun in his right hand, and said decisively:

“Don't come in hyar. 'Tain't your corn and you've no cause to mix yourself in this fuss.”

Bancroft obeyed involuntarily. The next moment he began to resent the authority conveyed in the prohibition; he ought to have protested, to have insisted—but now it was too late. As the soldiers rode up the lieutenant dismounted and threw his reins to a trooper. He stepped towards the fence, and touching his cap carelessly, remarked:

“Well, Mr. Conklin, here we are.” The earnestness of the Elder appeared to have its effect, too, upon him, for he went on more respectfully: “I regret that I've orders to pull down your fences and destroy the crop. But there's nothing else to be done.”

“Yes,” said the Elder gravely, “I guess you know your orders. But you mustn't pull down my fence,” and as he spoke he drew his shot-gun in front of him, and rested his hands upon the muzzle, “nor destroy this crop.” And the long upper lip came down over the lower, giving an expression of obstinate resolve to the hard, tanned face.

“You don't seem to understand,” replied the lieutenant a little impatiently; “this land belongs to the Indians; it has been secured to them by the United States Government, and you've no business either to fence it in or plant it.”

“That's all right,” answered Conklin, in the same steady, quiet, reasonable tone. “That may all be jes' so, but them Indians warn't usin' the land; they did no good with it. I broke this prairie ten years ago, and it took eight hosses to do it, and I've sowed it ever sence till the crops hev grown good, and now you come and tell me you're goin' to tromple down the corn and pull up the fences. No sir, you ain't—that ain't right.”

“Right or wrong,” the officer retorted, “I have to carry out my orders, not reason about them. Here, sergeant, let three man hold the horses and get to work on this fence.”

As the sergeant advanced and put his hand on the top layer of the heavy snake-fence, the Elder levelled his shot-gun and said:

“Ef you pull down that bar I'll shoot.”

The sergeant took his hand from the bar quickly, and turned to his commander as if awaiting further instructions.

“Mr. Conklin,” exclaimed the lieutenant, moving forward, “this is pure foolishness; we're twelve to one, and we're only soldiers and have to obey orders. I'm sorry, but I must do my duty.”

“That's so,” said the Elder, lowering his gun deliberately. “That's so, I guess. You hev your duty—p'r'aps I hev mine. 'Tain't my business to teach you yours.”

For a moment the lieutenant seemed to be undecided; then he spoke:

“Half-a-dozen of you advance and cover him with your rifles. Now, Mr. Conklin, if you resist you must take the consequences. Rebellion against the United States Government don't generally turn out well—for the rebel. Sergeant, down with the bar.”

The Elder stood as if he had not heard what had been said to him, but when the sergeant laid hold of the bar, the shot-gun went up again to the old man's shoulder, and he said:

“Ef you throw down that bar I'll shoot *you*.” Again the sergeant paused, and looked at his officer.

At this juncture Bancroft could not help interfering. The Elder's attitude had excited in him more than mere admiration; wonder, reverence thrilled him, and his blood boiled at the thought that the old man might possibly be shot down. He stepped forward and said:

“Sir, you must not order your men to fire. You will raise the whole country against you if you do. This is surely a law case, and not to be decided by violence. Such a decision is not to be taken without reflection and distinct instructions.”

“Those instructions I have,” replied the lieutenant, “and I've got to follow them out—more's the pity,” he added between his teeth, while turning to his troopers to give the decisive command. At this moment down from the bluff and over the wooden bridge came clattering a crowd of armed farmers, the younger ones whirling their rifles or revolvers as they rode. Foremost among them were Morris and Seth Stevens, and between these two young Jake Conklin on Jack. As they reached the corner of the fence the crowd pulled up and Morris cried out:

“Elder, we're on time, I reckon.” Addressing the lieutenant he added violently: “We don't pay United States soldiers to pull down our fences and destroy our crops. That's got to stop right here, and right now!”

“My orders are imperative,” the officer declared, “and if you resist you must take the consequences.” But while he spoke the hopelessness of his position became clear to him, for reinforcements of farmers were still pouring over the bridge, and already the soldiers were outnumbered two to one. Just as Seth Stevens began with “Damn the consequences,” the Elder interrupted him:

“Young man,” he said to the lieutenant, “you'd better go back to Wichita. I guess General Custer didn't send you to fight the hull township.” Turning to Stevens, he added, “Thar ain't no need fer any cussin'.” Amid complete silence he uncocked his shot-gun, climbed over the fence, and went on in the same voice:

“Jake, take that horse to the stable an' wipe him dry. Tell your mother I'm coming right up to eat.”

Without another word he moved off homewards. His intervention had put an end to the difficulty. Even the lieutenant understood that there was nothing more to be done for the moment. Five minutes later the troopers recrossed the bridge. Morris and a few of the older men held a brief consultation. It was agreed that they should be on the same spot at six o'clock on the morrow, and some of the younger spirits volunteered to act as scouts in the direction of Wichita and keep the others informed of what took place in that quarter.

When Bancroft reached the house with Morris—neither Stevens nor any of the others felt inclined to trespass on the Elder's hospitality without an express invitation—he found dinner waiting. Loo had not returned; had, indeed, arranged, as Morris informed them, to spend the day with his wife; but Jake was present and irrepressible; he wanted to tell all he had done to secure the victory. But he had scarcely commenced when his father shut him up by bidding him eat, for he'd have to go right back to school.

There was no feeling of triumph in the Elder. He scarcely spoke, and when Morris described the protective measures that had been adopted, he merely nodded. In fact, one would have inferred from his manner that he had had nothing whatever to do with the contest, and took no interest in it. The only thing that appeared to trouble him was Loo's absence and the fear lest she should have been “fussed;” but when Morris declared that neither his wife nor Loo knew what was going on, and Bancroft announced his intention of driving over to fetch her, he seemed to be satisfied.

“Jack, I reckon, has had enough,” he said to his boarder. “You'd better take the white mare; she's quiet.”

On their way home in the buggy, Bancroft told Loo how her father had defied the United States troops, and with what unconcern he had taken his victory:

“I think he's a great man, a hero. And if he had lived in another time, or in another country, poets would have sung his courage.”

“Really,” she observed. Her tone was anything but enthusiastic, though hope stirred in her at his unusual warmth. “Perhaps he cares for me after all,” she thought.

“What are you thinking about, Loo?” he asked, surprised at her silence.

“I was just wonderin’,” she answered, casting off her fit of momentary abstraction, “how father made you like him. It appears as if I couldn't, George,” and she turned towards him while she spoke her wistful eyes seeking to read his face.

There was a suggestion of tears in her voice, and her manner showed a submission and humility which touched Bancroft deeply. All his good impulses had been called into active life by his admiration of the Elder. He put his disengaged arm round her and drew her to him as he replied:

“Kiss me, Loo dear, and let us try to get on better together in future. There's no reason why we shouldn't,” he added, trying to convince himself. The girl's vain and facile temperament required but little encouragement to abandon itself in utter confidence. In her heart of hearts she was sure that every man must admire her, and as her companion's manner and words gave her hope, she chattered away in the highest spirits till the homestead was reached. Her good-humour and self-satisfaction made the evening pass merrily. Everything she said or did delighted the Elder, Bancroft saw that clearly now. Whether she laughed or talked, teased Jake, or mimicked the matronly airs of Mrs. Morris, her father's eyes followed her with manifest pleasure and admiration. On rising to go to bed the Elder said simply:

“It has been a good day—a good day,” he repeated impressively, while he held his daughter in his arms and kissed her.

The next morning Bancroft was early afoot. Shortly after sunrise he went down to the famous cornfield and found a couple of youths on watch. They had been there for more than an hour, they said, and Seth Stevens and

Richards had gone scouting towards Wichita. "Conklin's corner's all right," was the phrase which sent the schoolmaster to breakfast with a light heart. When the meal was over he returned to the centre of excitement. The Elder had gone about his work; Mrs. Conklin seemed as helplessly indifferent as usual; Loo was complacently careless; but Bancroft, having had time for reflection, felt sure that all this was Western-presumption; General Custer could not accept defeat so easily. At the "corner" he found a couple of hundred youths and men assembled. They were all armed, but the general opinion was that Custer would do nothing. One old farmer summed up the situation in the phrase, "Thar ain't nothin' for him to do, but set still."

About eight o'clock, however, Richards raced up, with his horse in a lather, and announced that Custer, with three hundred men, had started from Wichita before six.

"He'll be hyar in half an hour," he concluded.

Hurried counsel was taken; fifty men sought cover behind the stooks of corn, the rest lined the skirting woods. When all was in order, Bancroft was deputed to go and fetch the Elder, whom he eventually discovered at the wood pile, sawing and splitting logs for firewood.

"Make haste, Elder," he cried, "Morris has sent me for you, and there's no time to be lost. Custer, with three hundred men, left Wichita at six o'clock this morning, and they'll be here very soon."

The Elder paused unwillingly, and resting on his axe asked: "Is Morris alone?"

"No!" replied Bancroft, amazed to think the Elder could have forgotten the arrangements he had heard described the evening before. "There are two hundred men down there in the corner and in the woods," and he rapidly sketched the position.

"It's all right then, I guess," the Elder decided. "They'll get along without me. Tell Morris I'm at my chores." Beginning his work again, he added, "I've something to *do* hyar."

From the old man's manner Bancroft was convinced that solicitation would be a waste of time. He returned to the corner, where he found Morris standing inside the fence.

"I guessed so," was Morris's comment upon the Elder's attitude; "we'll hev to do without him, I reckon. You and me'll stay hyar in the open; we

don't want to shoot ef we kin avoid it; there ain't no reason to as I kin see.”

Ten minutes afterwards the cavalry crossed the bridge two deep, and wound snake-like towards the corner. With the first files came General Custer, accompanied by half-a-dozen officers, among whom Bancroft recognized the young lieutenant. Singling Morris out, the General rode up to the fence and addressed him with formal politeness:

“Mr. Conklin?”

“No,” replied Morris, “but I'm hyar fer him, I guess—an' about two hundred more ef I'm not enough,” he added drily, waving his hand towards the woods.

With a half-turn in his saddle and a glance at the line of trees on his flank, General Custer took in the situation. Clearly there was nothing to do but to retreat, with some show of dignity.

“Where shall I find Mr. Conklin? I wish to speak to him.”

“I'll guide you,” was Morris's answer, “ef you'll come alone; he mightn't fancy so many visitors to onc't.”

As Morris and Bancroft climbed over the fence and led the way towards the homestead, some of the armed farmers strolled from behind the stooks into the open, and others showed themselves carelessly among the trees on the bank of the creek. When the Elder was informed that General Custer was at the front door, he laid down his axe, and in his shirtsleeves went to meet him.

“Mr. Conklin, I believe?”

“That's my name, General.”

“You've resisted United States troops with arms, and now, it seems, you've got up a rebellion.”

“I guess not, General; I guess not I was Union all through the war; I came hyar as an Abolitionist I only want to keep my fences up as long as they'll stand, an' cut my corn in peace.”

“Well,” General Custer resumed, after a pause, “I must send to Washington for instructions and state the facts as I know them, but if the Federal authorities tell me to carry out the law, as I've no doubt they will, I shall be compelled to do so, and resistance on your part can only cause useless bloodshed.”

“That's so,” was the quiet reply; but what the phrase meant was not very clear save to Bancroft, who understood that the Elder was unable or unwilling to discuss a mere hypothesis.

With a curt motion of his hand to his cap General Custer cantered off to rejoin his men, who shortly afterwards filed again across the bridge on their way back to camp.

When the coast was clear of soldiers some of the older settlers went up to Conklin's to take counsel together. It was agreed to collect from all the farmers interested two dollars a head for law expenses, and to send at once for Lawyer Barkman of Wichita, in order to have his opinion on the case. Morris offered to bring Barkman next day about noon to Conklin's, and this proposal was accepted. If any other place had been fixed upon, it would have been manifestly impossible to secure the Elder's presence, for his refusal again to leave the wood pile had converted his back-stoop into the council-chamber. Without more ado the insurgents dispersed, every man to his house.

On returning home to dinner next day Bancroft noticed a fine buggy drawn up outside the stable, and a negro busily engaged in grooming two strange horses. When he entered the parlour he was not surprised to find that Morris had already arrived with the lawyer. Barkman was about forty years of age; above the medium height and very stout, but active. His face was heavy; its outlines obscured by fat; the nose, however, was thin and cocked inquisitively, and the eyes, though small, were restless and intelligent. He was over-dressed; his black frock-coat was brand new; the diamond stud which shone in the centre of a vast expanse of shirt-front, was nearly the size of a five-cent piece—his appearance filled Bancroft with contempt. Nevertheless he seemed to know his business. As soon as he had heard the story he told them that an action against the Elder would lie in the Federal Courts, and that the damages would certainly be heavy. Still, something might be done; the act of rebellion, he thought, would be difficult to prove; in fine, they must wait on events.

At this moment Mrs. Conklin accompanied by Loo came in to announce that dinner was ready. It was manifest that the girl's beauty made a deep impression on Barkman. Before seeing her he had professed to regard the position as hopeless, or nearly so; now he was ready to reconsider his first opinion, or rather to modify it. His quick intelligence appeared to have

grown keener as he suddenly changed his line of argument, and began to set forth the importance of getting the case fully and fairly discussed in Washington.

"I must get clear affidavits from all the settlers," he said, "and then, I guess, we'll show the authorities in Washington that this isn't a question in which they should interfere. But if I save you," he went on, with a laugh intended to simulate frank good-nature, "I s'pose I may reckon on your votes when I run for Congress."

It was understood at once that he had pitched upon the best possible method of defence. Morris seemed to speak for all when he said:

"Ef you'll take the trouble now, I guess we'll ensure your election."

"Never mind the election, that was only a jest," replied the lawyer good-humouredly; "and the trouble's not worth talkin' about. If Miss Conklin," and here he turned respectfully towards her, "would take a seat in my buggy and show me the chief settlers' houses, I reckon I could fix up the case in three or four days."

The eyes of all were directed upon Loo. Was it Bancroft's jealousy that made him smile contemptuously as he, too, glanced at her? If so, the disdain was ill-timed. Flushing slightly, she answered, "I guess I'll be pleased to do what I can," and she met the schoolmaster's eyes defiantly as she spoke.

With the advent of Barkman upon the scene a succession of new experiences began for Bancroft. He was still determined not to be seduced into making Loo his wife. But now the jealousy that is born of desire and vanity tormented him, and the mere thought that Barkman might marry and live with her irritated him intensely. She was worthy of better things than marriage with such a man. She was vain, no doubt, and lacking in the finer sensibilities, the tremulous moral instincts which are the crown and glory of womanhood; but it was not her fault that her education had been faulty, her associates coarse—and after all she was very beautiful.

On returning home one afternoon he saw Barkman walking with her in the peach orchard. As they turned round the girl called to him, and came at once to meet him; but his jealousy would not be appeased. Her flower-like face, framed, so to speak, by the autumn foliage, only increased his anger. He could not bear to see her flirting. Were she out of his sight, he felt for the first time, he would not care what she did.

“You were goin' in without speakin',” she said reproachfully.

“You have a man with you whose trade is talk. I'm not needed,” was his curt reply.

Half-incensed, half-gratified by his passionate exclamation, she drew back, while Barkman, advancing, said:

“Good day, Mr. Bancroft, good day. I was just tryin' to persuade Miss Conklin to come for another drive this evenin' in order to get this business of ours settled as soon as possible.”

“Another drive.” Bancroft repeated the words to himself, and then steadying his voice answered coolly: “You'll have no difficulty, lawyer. I was just telling Miss Conklin that you talked splendidly—the result of constant practice, I presume.”

“That's it, sir,” replied the lawyer seriously; “it's chiefly a matter of practice added to gift—natural gift,” but here Barkman's conceit died out as he caught an uneasy, impatient movement of Miss Conklin, and he went on quietly with the knowledge of life and the adaptability gained by long experience: “But anyway, I'm glad you agree with me, for Miss Conklin may take your advice after rejectin' mine.”

Bancroft saw the trap, but could not restrain himself. With a contemptuous smile he said:

“I'm sure no advice of mine is needed; Miss Conklin has already made up her mind to gratify you. She likes to show the country to strangers,” he added bitterly.

The girl flushed at the sarcasm, but her spirit was not subdued.

“Wall, Mr. Barkman,” she retorted, with a smiling glance at the lawyer, “I guess I must give in; if Mr. Bancroft thinks I ought ter, there's no more to be said. I'm willin'.”

An evening or two later, Barkman having gone into Wichita, Bancroft asked Loo to go out with him upon the stoop. For several minutes he stood in silence admiring the moonlit landscape; then he spoke as if to himself:

“Not a cloud in the purple depths, no breath of air, no sound nor stir of life—peace absolute that mocks at man's cares and restlessness. Look, Loo, how the ivory light bathes the prairie and shimmers on the sea of corn, and makes of the little creek a ribband of silver....

“Yet you seem to prefer a great diamond gleaming in a white shirt-front, and a coarse, common face, and vulgar talk.

“You,” and he turned to her, “whose beauty is like the beauty of nature itself, perfect and ineffable. When I think of you and that coarse brute together, I shall always remember this moonlight and the hateful zig-zagging snake-fence there that disfigures and defiles its beauty.”

The girl looked up at him, only half understanding his rhapsody, but glowing with the hope called to life by his extravagant praise of her. “Why, George,” she said shyly, because wholly won, “I don't think no more of Lawyer Barkman than the moon thinks of the fence—an' I guess that's not much,” she added, with a little laugh of complete content.

The common phrases of uneducated speech and the vulgar accent of what he thought her attempt at smart rejoinder offended him. Misunderstanding her literalness of mind, he moved away, and shortly afterwards re-entered the house.

Of course Loo was dissatisfied with such incidents as these. When she saw Bancroft trying to draw Barkman out and throw contempt upon him, she never dreamed of objecting. But when he attacked her, she flew to her weapons. What had she done, what was she doing, to deserve his sneers? She only wished him to love her, and she felt indignantly that every time she teased him by going with Barkman, he was merciless, and whenever she abandoned herself to him, he drew back. She couldn't bear that; it was cruel of him. She loved him, yes; no one, she knew, would ever make him so good a wife as she would. No one ever could. Why, there was nothin' she wouldn't do for him willingly. She'd see after his comforts an' everythin'. She'd tidy all his papers an' fix up his things. And if he ever got ill, she'd jest wait on him day and night—so she would. She'd be the best wife to him that ever was.

Oh, why couldn't he be good to her always? That was all she wanted, to feel he loved her; then she'd show him how she loved him. He'd be happy, as happy as the day was long. How foolish men were! they saw nothin' that was under their noses.

“P'r'aps he does love me,” she said to herself; “he talked the other evenin' beautiful; I guess he don't talk like that to every one, and yet he won't give in to me an' jest be content—once for all. It's their pride makes 'em like that; their silly, stupid pride. Nothin' else. Men air foolish things. I've no pride at

all when I think of him, except I know that no one else could make him as happy as I could. Oh my!" and she sighed with a sense of the mysterious unnecessary suffering in life.

"An' he goes on bein' mad with Lawyer Bark-man. Fancy, that fat old man. He warn't jealous of Seth Stevens or the officer, no; but of him. Why, it's silly. Barkman don't count anyway. He talks well, yes, an' he's always pleasant, always; but he's jest not in it Men air foolish anyway." She was beginning to acknowledge that all her efforts to gain her end might prove unsuccessful.

Barkman, with his varied experience and the cooler blood of forty, saw more of the game than either Bancroft or Loo. He had learnt that compliments and attention count for much with women, and having studied Miss Conklin he was sure that persistent flattery would go a long way towards winning her. "I've gained harder cases by studying the jury," he thought, "and I'll get her because I know her. That schoolmaster irritates her; I won't. He says unpleasant things to her; I'll say pleasant things and she'll turn to me. She likes to be admired; I guess that means dresses and diamonds. Well, she shall have them, have all she wants.... The mother ain't a factor, that's plain, and the father's sittin' on the fence; he'll just do anythin' for the girl, and if he ain't well off—what does that matter? I don't want money;" and his chest expanded with a proud sense of disinterestedness.

"Why does the schoolmaster run after her? what would he do with such a woman? He couldn't even keep her properly if he got her. It's a duty to save the girl from throwin' herself away on a young, untried man like that." He felt again that his virtue ought to help him to succeed.

"What a handsome figure she has! Her arms are perfect, firm as marble; and her neck—round, too, and not a line on it, and how she walks! She's the woman I want—so lovely I'll always be proud of her. What a wife she'll make! My first wife was pretty, but not to be compared to her. Who'd ever have dreamt of finding such a beauty in this place? How lucky I am after all. Yes, lucky because I know just what I want, and go for it right from the start That's all. That's what luck means.

"Women are won little by little," he concluded. "Whoever knows them and humours them right along, flattering their weak points, is sure to succeed some time or other. And I can wait."

He got his opportunity by waiting. As Loo took her seat in the buggy one afternoon he saw that she was nervous and irritable. "The schoolmaster's been goin' for her—the derved fool," he said to himself, and at once began to soothe her. The task was not an easy one. She was cold to him at first and even spiteful; she laughed at what he said and promised, and made fun of his pretensions. His kindly temper stood him in good stead. He was quietly persistent; with the emollient of good-nature he wooed her in his own fashion, and before they reached the first settler's house he had half won her to kindliness. Here he made his victory complete. At every question he appealed to her deferentially for counsel and decision; he reckoned Miss Conklin would know, he relied on her for the facts, and when she spoke he guessed that just settled the matter; her opinion was good enough for him, and so forth.

Wounded to the soul by Bancroft's persistent, undeserved contempt, the girl felt that now at last she had met some one who appreciated her, and she gave herself up to the charm of dexterous flattery.

From her expression and manner while they drove homewards, Barkman believed that the game was his own. He went on talking to her with the reverence which he had already found to be so effective. There was no one like her. What a lawyer she'd have made! How she got round the wife and induced the husband to sign the petition—'twas wonderful! He had never imagined a woman could be so tactful and winning. He had never met a man who was her equal in persuading people.

The girl drank in the praise as a dry land drinks the rain. He meant it all; that was clear. He had shown it in his words and acts—there, before the Croftons. She had always believed she could do such things; she didn't care much about books, and couldn't talk fine about moonlight, but the men an' women she knew, she understood. She was sure of that. But still, 'twas pleasant to hear it. He must love her or he never could appreciate her as he did. She reckoned he was very clever; the best lawyer in the State. Every one knew that. And he had said no man was equal to her. Oh, if only the other, if only George had told her so; but he was too much wrapped up in himself, and after all what was he anyway? Yet, if he had—

At this point of her musings the lawyer, seeing the flushed cheeks and softened glance, believed his moment had come, and resolved to use it. His passion made him forget that it was possible to go too fast.

“Miss Conklin,” he began seriously, “if you'd join with me there's nothin' we two couldn't do, nothin'! They call me the first lawyer in the State, and I guess I'll get to Washington soon; but with you to help me I'd be there before this year's out. As the wife of a Member of Congress, you would show them all the way. I'm rich already; that is, I can do whatever you want, and it's a shame for such genius as yours, and such talent, to be hidden here among people who don't know how to value you properly. In New York or in Washington you'd shine; become a social power,” and as the words “New York” caused the girl to look at him with eager attention, he added, overcome by the foretaste of approaching triumph: “Miss Loo, I love you; you've seen that, for you notice everythin'. I know I'm not young, but I can be kinder and more faithful than any young man, and,” here he slipped his arm round her waist, “I guess all women want to be loved, don't they? Will you let me love you, Loo, as my wife?”

The girl shrank away from him nervously. Perhaps the fact of being in a buggy recalled her rides with George; or the caress brought home to her the difference between the two men. However that may be, when she answered, it was with full self-possession:

“I guess what you say's about right, and I like you. But I don't want to marry—anyway not yet. Of course I'd like to help you, and I'd like to live in New York; but—I can't make up my mind all at once. You must wait. If you really care for me, that can't be hard.”

“Yes, it's hard,” Barkman replied, “very hard to feel uncertain of winning the only woman I can ever love. But I don't want to press you,” he added, after a pause, “I rely on you; you know best, and I'll do just what you wish.”

“Well, then,” she resumed, mollified by his humility, “you'll go back to Wichita this evenin', as you said you would, and when you return, the day after to-morrow, I'll tell you Yes or No. Will that do?” and she smiled up in his face.

“Yes, that's more than I had a right to expect,” he acknowledged. “Hope from you is better than certainty from any other woman.” In this mood they reached the homestead. Loo alighted at the gate; she wouldn't allow Barkman even to get down; he was to go right off at once, but when he returned she'd meet him. With a grave respectful bow he lifted his hat, and drove away. On the whole, he had reason to be proud of his diplomacy; reason, too, for saying to himself that at last he had got on “the inside

track." Still, all the factors in the problem were not seen even by his keen eyes.

The next morning, Loo began to reflect upon what she should do. It did not occur to her that she had somewhat compromised herself with the lawyer by giving him leave, and, in fact, encouragement to expect a favourable answer. She was so used to looking at all affairs from the point of view of her own self-interest and satisfaction, that such an idea did not even enter her head. She simply wanted to decide on what was best for herself. She considered the matter as it seemed to her, from all sides, without arriving at any decision. Barkman was kind, and good to her; but she didn't care for him, and she loved George still. Oh, why wasn't he like the other, always sympathetic and admiring? She sat and thought. In the depths of her nature she felt that she couldn't give George up, couldn't make up her mind to lose him; and why should she, since they loved each other? What could she do?

Of a sudden she paused. She remembered how, more than a year before, she had been invited to Eureka for a ball. She had stayed with her friend Miss Jennie Blood; by whose advice and with whose help she had worn for the first time a low-necked dress. She had been uncomfortable in it at first, very uncomfortable, but the men liked it, all of them. She had seen their admiration in their eyes; as Jennie had said, it fetched them. If only George could see her in a low-necked dress—she flushed as she thought of it—perhaps he'd admire her, and then she'd be quite happy. But there were never any balls or parties in this dead-and-alive township! How could she manage it?

The solution came to her with a shock of half-frightened excitement. It was warm still, very warm, in the middle of the day; why shouldn't she dress as for a dance, somethin' like it anyway, and go into George's room to put it straight just before he came home from school? Her heart beat quickly as she reflected. After all, what harm was there in it? She recollected hearing that in the South all the girls wore low dresses in summer, and she loved George, and she was sure he loved her. Any one would do it, and no one would know. She resolved to try on the dress, just to see how it suited her. There was no harm in that. She took off her thin cotton gown quickly, and put on the ball-dress. But when she had dragged the chest of drawers before the window and had propped up the little glass on it to have a good

look at herself, she grew hot. She couldn't wear that, not in daylight; it looked, oh, it looked—and she blushed crimson. Besides, the tulle was all frayed and faded. No, she couldn't wear it! Oh!—and her eyes filled with tears of envy and vexation. If only she were rich, like lots of other girls, she could have all sorts of dresses. 'Twas unfair, so it was. She became desperate with disappointment, and set her wits to work again. She had plenty of time still. George wouldn't be back before twelve. She must choose a dress he had never seen; then he wouldn't know but what she often wore it so. Nervously, hurriedly, she selected a cotton frock, and before the tiny glass pinned and arranged it over her shoulders and bust, higher than the ball-dress, but still, lower than she had ever worn in the daytime. She fashioned the garment with an instinctive sense of form that a Parisian *couturière* might have envied, and went to work. Her nimble fingers soon cut and sewed it to the style she had intended, and then she tried it on. As she looked at herself in the mirror the vision of her loveliness surprised and charmed her. She had drawn a blue ribband that she happened to possess, round the arms of the dress and round the bodice of it, and when she saw how this little thread of colour set off the full outlines of her bust and the white roundness of her arms, she could have kissed her image in the glass. She was lovely, prettier than any girl in the section. George would see that; he loved beautiful things. Hadn't he talked of the scenery for half an hour? He'd be pleased.

She thought again seriously whether her looks could not be improved. After rummaging a little while in vain, she went downstairs and borrowed a light woollen shawl from her mother on the pretext that she liked the feel of it. Hastening up to her own room, she put it over her shoulders, and practised a long time before the dim glass just to see how best she could throw it back or draw it round her at will.

At last, with a sigh of content, she felt herself fully equipped for the struggle; she was looking her best. If George didn't care for her so—and she viewed herself again approvingly from all sides—why, she couldn't help it. She had done all she could, but if he did, and he must—why, then, he'd tell her, and they'd be happy. At the bottom of her heart she felt afraid. George was strange; not a bit like other men. He might be cold, and at the thought she felt inclined to cry out. Pride, however, came to her aid. If he didn't like her, it would be his fault. She had just done her best, and that she reckoned, with a flush of pardonable conceit, was good enough for any *man*.

An hour later Bancroft went up to his room. As he opened the door Loo turned towards him from the centre-table with a low cry of surprise, drawing at the same time the ends of the fleecy woollen wrap tight across her breast.

“Oh, George, how you scared me! I was jest fixin' up your things.” And the girl crimsoned, while her eyes sought to read his face.

“Thank you,” he rejoined carelessly, and then, held by something of expectation in her manner, he looked at her intently, and added: “Why, Loo, how well you look! I like that dress; it suits you.” And he stepped towards her.

She held out both hands as if to meet his, but by the gesture the woollen scarf was thrown back, and her form unveiled. Once again her mere beauty stung the young man to desire, but something of a conscious look in her face gave him thought, and, scrutinizing her coldly, he said:

“I suppose that dress was put on for Mr. Barkman's benefit.”

“Oh, George!” she cried, in utter dismay, “he hain't been here to-day.” And then, as the hard expression did not leave his face, she added hurriedly: “I put it on for you, George. Do believe me.”

Still his face did not alter. Suddenly she understood that she had betrayed her secret. She burst into bitter tears.

He took her in his arms and spoke perfunctory words of consolation; her body yielded to his touch, and in a few moments he was soothing her in earnest. Her grief was uncontrollable. “I've jest done everythin', everythin', and it's all no use,” she sobbed aloud. When he found that he could not check the tears, he grew irritated; he divined her little stratagem, and his lip curled. How unmaidenly!

In a flash, she stood before him, her shallow, childish vanity unmasked. The pity of it did not strike him; he was too young for that; he felt only contempt for her, and at once drew his arms away. With a long, choking sob she moved to the door and disappeared. She went blindly along the passage to her room, and, flinging herself on the bed, cried as if her heart would break. Then followed a period of utter abject misery. She had lost everything George didn't care for her; she'd have to live all her life without him, and again slow, scalding tears fell.

The thought of going downstairs to supper and meeting him was intolerable. The sense of what she had confessed to him swept over her in a hot flood of shame. No, she couldn't go down; she couldn't face his eyes again. She'd sit right there, and her mother'd come up, and she'd tell her she had a headache. To meet him was impossible; she just hated him. He was hard and cruel; she'd never see him again; he had degraded her. The whole place became unbearable as she relived the past; she must get away from him, from it all, at any cost, as soon as she could. They'd be sorry when she was gone. And she cried again a little, but these tears relieved her, did her good.

She tried to look at the whole position steadily. Barkman would take her away to New York. Marry him?—she didn't want to, but she wouldn't make up her mind now; she'd go away with him if he'd be a real friend to her. Only he mustn't put his arm round her again; she didn't like him to do that. If he wished to be a friend to her, she'd let him; if not, she'd go by herself. He must understand that. Once in New York, she'd meet kind people, live as she wanted to live, and never think of this horrid time.

She was all alone; no one in the world to talk to about her trouble—no one. No one cared for her. Her mother loved Jake best; and besides, if she told her anythin', she'd only set down an' cry. She'd write and say she was comfortable; and her father?—he'd get over it. He was kind always, but he never felt much anyway—leastwise, he never showed anythin'. When they got her letter 'twould be all right. That was what she'd do—and so, with her little hands clenched and feverish face, she sat and thought, letting her imagination work.

A few mornings later Bancroft came down early. He had slept badly, had been nervous and disturbed by jealous forebodings, and had not won easily to self-control. He had only been in the sitting-room a minute or two when the Elder entered, and stopping in front of him asked sharply:

“Hev you seen Loo yet?”

“No. Is she down?”

“I reckoned you'd know ef she had made out anythin' partikler to do to-day.”

“No,” he repeated seriously, the Elder's manner impressing him. “No! she told me nothing, but perhaps she hasn't got up yet.”

“She ain't in her room.”

“What do you mean?”

“You didn't hear buggy-wheels last night—along towards two o'clock?”

“No, but—you don't mean to say? Lawyer Barkman!” And Bancroft started up with horror in his look.

The Elder stared at him, with rigid face and wild eyes, but as he gradually took in the sincerity of the young man's excitement, he turned, and left the room.

To his bedroom he went, and there, after closing the door, fell on his knees. For a long time no word came; with clasped hands and bowed head the old man knelt in silence. Sobs shook his frame, but no tears fell. At length broken sentences dropped heavily from his half-conscious lips:

“Lord, Lord! 'Tain't right to punish her. She knowed nothin'. She's so young. I did wrong, but I kain't bear her to be punished.

“P'r'aps You've laid this on me jes' to show I'm foolish and weak. That's so, O Lord! I'm in the hollow of Your hand. But You'll save her, O Lord! for Jesus' sake.

“I'm all broke up. I kain't pray. I'm skeered. Lord Christ, help her; stan' by her; be with her. O Lord, forgive!”

June and July, 1891.

*** END OF THE PROJECT GUTENBERG EBOOK ELDER CONKLIN

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.